

TERMS & CONDITIONS

The following Terms and Conditions are incorporated into and made a part of the Restoration Contract with Cox Roofing & Restoration LLC (the "Contractor").

1. **Changes.** All changes to the Work require a written Change Order signed by Contractor and Customer and may result in additional charges. Customer shall sign Change Orders for additional work required by engineers or inspectors. No changes to this Agreement are valid unless in writing and signed by both parties.
2. **Performance.** Contractor shall begin Work within 180 days after approval of price, scope, and replacement cost by the Insurer, or as soon as practicable. Work shall be substantially completed in a timely manner consistent with proper workmanship, subject to delays from weather, labor or material availability, or other conditions beyond Contractor's control.
3. **Warranty and Workmanship.** Other than those statutory warranties which may apply to the Work, CONTRACTOR HEREBY DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED. Contractor further disclaims claims for breach of contract, negligence, and other claims of any kind whatsoever for which Customer has not provided Contractor with written or actual notice within six months from the date of discovery of the problem. Customer agrees to allow Contractor or its agents to review the conditions of any claim, item, or matter in dispute prior to disturbing the conditions and before any repairs or alterations are made, or the right to make said claim is waived. Customer further agrees that Contractor shall have the right to cure any alleged defect in workmanship within 30 days, or longer if impractical, prior to initiating legal action.
4. **Cooperation.** Customer shall pay Contractor all insurance proceeds for the Work. Any additional or unforeseen work requires a signed Change Order, and Customer agrees to sign and is responsible for all related costs. Customer will cooperate with Contractor in submitting supplemental claims, if applicable. Contractor is entitled to all compensation approved and paid by the Insurer.
5. **Customer's Obligations.** Customer shall provide Contractor, at no cost, clear access to work areas, including removal of ice and snow, for workers, equipment, delivery, and material storage. Customer shall provide electricity, water, and utilities and identify underground utilities, if applicable. Customer agrees to indemnify and hold Contractor harmless from damage caused by equipment, materials, debris, or construction activity. Contractor is not responsible for securing gates or doors. Excess materials remain Contractor's property. Customer shall remove or protect personal property near work areas and assumes risk of damage from normal construction, including vibration. Customer shall not direct Contractor's workforce, supply labor or materials, or hire subcontractors. Customer assumes liability for damage caused by dumpsters, delivery vehicles, and construction equipment.
6. **Existing Conditions.** This Agreement is based on visible conditions at the time of inspection. Customer assumes responsibility for pre-existing or concealed conditions. Contractor may suspend Work until additional work is agreed upon if such conditions are discovered. Contractor is not responsible for existing code violations or deficiencies. Materials and finishes may vary in color, brand, grade, or dimensions. Contractor may make reasonable substitutions that do not materially affect quality or design. Contractor does not guarantee prevention of ice buildup or ice dams and is not liable for the same.
7. **Hazardous Material.** Customer assumes full responsibility for all hazardous conditions, including asbestos, mold, lead, or other harmful materials at the property. Such conditions are deemed pre-existing. Contractor may stop Work until conditions are removed. Customer agrees to indemnify and hold Contractor harmless from any claims or damages related to mold, fungus, or other biological materials.
8. **Insurance.** Contractor maintains general liability and workers' compensation insurance as required by Illinois law (815 ILCS 513/25).
9. **Cancellation.** Customer acknowledges Contractor shall undertake substantial effort identifying damage to Customer's property, preparing estimates, communicating with Insurer, supplying and scheduling materials and labor, coordinating tradespersons, attending inspections with building officials, and other activities, and that damages arising from Customer's breach or cancellation would be difficult to ascertain. If Customer cancels this Agreement without the legal right to do so, then Contractor shall be entitled to, as liquidated damages and not as a penalty, payment of any work performed at the Property, any restocking charges from returned material, the cost of material that cannot be returned, plus 10% of the price of repairs offered by Customer's Insurer.
10. **Confidential Information.** Customer agrees that Contractor's costs, expenses, and pricing, including labor, materials, invoices, and project costs, are confidential and shall not be disclosed to any third party.
11. **Payment.** Contractor will not start the Work until it receives the initial Actual Cash Value payment from the Insurer, plus any additional amounts Contractor may require. Final payment is due upon substantial completion of the Work. Final payment is a condition precedent to any applicable warranties. All invoices are payable within 30 days. Failure to make timely payment will result in charges added to the overdue amount at the lesser of 8% per annum or the maximum charge allowed by Illinois law. Customer agrees to pay all collection costs, including court, legal, and attorneys' fees incurred in the collection of past due amounts or in the event of litigation where Contractor is the prevailing party.
12. **Governing Law and Venue.** This Agreement shall be governed by and construed in accordance with the laws of the State of Illinois. Any legal action shall be brought in state or federal courts in DuPage County, Illinois. Customer consents to jurisdiction and venue in such courts.
13. **Miscellaneous.** If any provision of this Agreement is found unenforceable, the availability and enforceability of all remaining provisions shall remain in full effect. The headings herein are for reference purposes only and shall not affect the meaning or interpretation of this Agreement. This Agreement constitutes the entire agreement between the parties and supersedes all prior representations, negotiations, or discussions, whether oral or written.
14. **Advertising.** Customer authorizes Contractor to place its advertising yard sign on Customer's property. Customer grants Contractor unlimited license to record images of the Work in any form and to reproduce those images for advertising and promotional use.

NOTICE OF CANCELLATION

COPY 1 OF 2 — CUSTOMER RETAINS

NOTICE OF CANCELLATION OF HOME REPAIR AND REMODELING CONTRACT ENTERED BY AND BETWEEN THE UNDERSIGNED AND Cox Roofing & Restoration LLC

CONTRACT DATED: _____

If you do not want the goods or services described in the above contract, you may cancel your purchase by mailing or delivering a signed and dated copy of this cancellation notice or any other written notice to Cox Roofing & Restoration LLC (the "Contractor") at 700 Commerce Dr, Suite 500 | Oak Brook, IL 60523 — not later than midnight of the third (3rd) business day after the date the contract was entered into between you and Contractor.

Senior Citizen Exception (815 ILCS 513/22): If you are 65 years of age or older and this contract was solicited at your home by an uninvited contractor, you have until midnight of the fifteenth (15th) full business day to cancel. Sundays and federal holidays do not count as business days.

If you cancel, any payments made by you under the contract or sale, any property traded in, and any instrument executed by you will be returned within ten (10) business days following receipt by Contractor of your cancellation notice, and any security interest arising out of the transaction will be canceled.

If you cancel, you must make available to Contractor at your residence, in substantially as good condition as when received, any goods delivered to you under this contract; or you may comply with Contractor's written instructions regarding return shipment at Contractor's expense and risk. If Contractor does not pick up goods within 20 days of your notice, you may retain or dispose of them without further obligation.

Cox Roofing

700 Commerce Dr, Suite 500 | Oak Brook, IL 60523

Phone: (877) 816-4245

I HEREBY CANCEL THIS TRANSACTION.

DATE	CUSTOMER'S SIGNATURE
_____	_____
PRINT NAME	ADDRESS
_____	_____
CITY, STATE, ZIP	PHONE
_____	_____

NOTICE OF CANCELLATION

COPY 2 OF 2 — CUSTOMER RETAINS

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DATE

—

CUSTOMER'S SIGNATURE

—

PRINT NAME

—

ADDRESS

—

CITY, STATE, ZIP

—

PHONE

—

NOTICE OF CANCELLATION DUE TO INSURANCE CLAIM DENIAL

If your insurer notifies you that all or any part of your claim or contract is not a covered loss under your insurance policy, you may cancel this contract by mailing or delivering a signed and dated copy of this cancellation notice or any other written notice to Cox Roofing & Restoration LLC (the "Contractor") at 700 Commerce Dr, Suite 500 | Oak Brook, IL 60523 — at any time prior to midnight on the earlier of:

- (a) The fifth (5th) business day after you have received written notice from your insurer that all or any part of the claim is not a covered loss; or
- (b) The thirtieth (30th) business day after your insurer has received your properly executed proof(s) of loss. (815 ILCS 513)

If you cancel, any payments made by you under the contract will be returned to you within ten (10) business days following receipt by Contractor of your cancellation notice.

Exception for Emergency / Catastrophe Work: If you previously acknowledged and agreed in writing that certain goods or services were necessary to prevent damage to your property due to a catastrophe, Contractor is entitled to the reasonable value of those emergency goods or services even upon cancellation.

Cox Roofing
700 Commerce Dr, Suite 500 | Oak Brook, IL 60523
Phone: (877) 816-4245

I HEREBY CANCEL THIS TRANSACTION.

DATE	CUSTOMER'S SIGNATURE
PRINT NAME	ADDRESS
CITY, STATE, ZIP	CLAIM NO. (IF KNOWN)

NOTICE OF CANCELLATION DUE TO INSURANCE CLAIM DENIAL

COPY 2 OF 2 — CUSTOMER RETAINS

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- (a) The fifth (5th) business day after you have received written notice from your insurer that all or any part of the claim is not a covered loss; or
- (b) The thirtieth (30th) business day after your insurer has received your properly executed proof(s) of loss. (815 ILCS 513)

If you cancel, any payments made by you under the contract will be returned to you within ten (10) business days following receipt by Contractor of your cancellation notice.

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I HEREBY CANCEL THIS TRANSACTION.

DATE

—

CUSTOMER'S SIGNATURE

—

PRINT NAME

—

ADDRESS

—

CITY, STATE, ZIP

—

CLAIM NO. (IF KNOWN)

—

MECHANIC'S LIEN NOTICE

(a) Any person or company supplying labor or materials for this improvement to your property may file a lien against your property if that person or company is not paid for the contributions; and

(b) Under Illinois law, you have the right to pay persons who supplied labor or materials for this improvement directly and deduct this amount from our contract price, or withhold the amounts due them from us until 90 days after completion of the improvement unless we give you a lien waiver signed by persons who supplied any labor or material for the improvement and who gave you timely notice.

See also the Illinois Mechanics Lien Act (770 ILCS 60). Request lien waivers before final payment.

HOME REPAIR: KNOW YOUR CONSUMER RIGHTS

Illinois Home Repair and Remodeling Act · 815 ILCS 513

CONSUMER RIGHTS ACKNOWLEDGMENT FORM — Required by 815 ILCS 513/20 — In Duplicate — Contractor retains original / Customer retains duplicate

Illinois law (815 ILCS 513/20) requires your contractor to provide this pamphlet before you sign any home repair or remodeling contract over \$1,000. Please read this carefully, keep your copy, and ask questions before signing.

Get It in Writing

You have the right to a written contract for all work over \$1,000 that clearly describes the scope, materials, and total price. Never sign a blank or incomplete contract.

Right to Cancel

If this contract was signed at your home, you have 3 business days to cancel for any reason. If you are 65 or older and the contractor came to you uninvited, you have 15 business days. Sundays and federal holidays do not count. Cancellation must be in writing.

Written Estimate

You have the right to a written, itemized estimate of labor and materials before work begins. This is part of your signed contract.

Deductible Protection

It is ILLEGAL for a contractor to pay, waive, or rebate your insurance deductible (815 ILCS 513/18 & 513/30). Any offer to cover your deductible is a violation of Illinois law. Report violations: 1-800-243-0618.

Permits & Inspections

Your contractor must obtain all required permits. You have the right to confirm permits were obtained. Check with your local municipality.

Lien Protection

Under the Illinois Mechanics Lien Act (770 ILCS 60), unpaid subcontractors or suppliers may lien your home even if you paid the contractor in full. Request lien waivers before final payment.

License & Insurance

Ask for proof of general liability insurance. Verify the contractor's business is properly registered in Illinois.

Warranties

Get all warranty terms in writing. Illinois law entitles you to: 1-year warranty on workmanship/materials; 2-year on mechanical systems; 10-year on major structural work.

No Adjusting Without a License

Your contractor CANNOT file or negotiate an insurance claim on your behalf — that requires a licensed Public Adjuster (815 ILCS 513 / Public Act 96-1332).

How to File a Complaint

Contact the Illinois Attorney General's Consumer Protection Division: 1-800-243-0618, or visit www.illinoisattorneygeneral.gov

"I, the homeowner, have received from the contractor a copy of the pamphlet entitled 'Home Repair: Know Your Consumer Rights.'"

Customer Signature · Date

Print name

Customer Signature (2nd if applicable) · Date